

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
LUIS MANGUAL,

Plaintiff,

Index No.:

Date Purchased:

-against-

CITY OF NEW YORK, DHS PEACE OFFICER SMITH, BADGE NUMBER UNKNOWN, DHS PEACE OFFICERS "JOHN DOE 1" TO "JOHN DOE 3", BADGE NUMBERS UNKNOWN, AND SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT, *the name "John Doe" being fictitious, as the true names are presently unknown and intended to be the officers involved in Plaintiff's arrest on October 19, 2016, while inside 127 West 25th Street, New York, New York,*

Plaintiff designates New York County as the place of trial.

Basis of venue is place of occurrence.

Defendants.
-----XSUMMONS

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: White Plains, New York
January 14, 2019

TRACIE A. SUNDACK & ASSOCIATES, L.L.C.
Attorneys for Plaintiff
LUIS MANGUAL
19 Court Street, 3rd Floor
White Plains, New York 10601
(914) 946-8100

Defendants' addresses:

CITY OF NEW YORK
100 Church Street
New York, New York 10007

DHS PEACE OFFICER SMITH,
BADGE NUMBERS UNKNOWN,
c/o BRC - Jack Ryan Residence
127 West 25th Street
New York, New York 10001

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
LUIS MANGUAL,

Plaintiff,

Index No.:

-against-

CITY OF NEW YORK, DHS PEACE OFFICER SMITH, BADGE NUMBER UNKNOWN, DHS PEACE OFFICERS "JOHN DOE 1" TO "JOHN DOE 3", BADGE NUMBERS UNKNOWN, AND SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT, *the name "John Doe" being fictitious, as the true names are presently unknown and intended to be the officers involved in Plaintiff's arrest on October 19, 2016, while inside 127 West 25th Street, New York, New York,*

VERIFIED COMPLAINT

Defendants.
-----X

Plaintiff LUIS MANGUAL by and through his attorneys, TRACIE A. SUNDACK & ASSOCIATES, L.L.C., complaining of Defendants CITY OF NEW YORK, DHS PEACE OFFICER SMITH, BADGE NUMBER UNKNOWN, DHS PEACE OFFICERS "JOHN DOE 1" TO "JOHN DOE 3", BADGE NUMBERS UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT, *the name "John Doe" being fictitious, as the true names are presently unknown, and intended to be the officers involved in Plaintiff's arrest on October 19, 2016, while inside 127 West 25th Street, New York, New York,* respectfully alleges as follows:

1. That Plaintiff LUIS MANGUAL is a Hispanic male, a citizen of the United States, and at all relevant times a resident of the City and State of New York.
2. That at all times hereinafter mentioned Defendant CITY OF NEW YORK was and still is a municipal corporation duly organized and existing under and by virtue of the General Municipal Law of the State of New York.
3. That at all times hereinafter mentioned Defendant CITY OF NEW YORK, its agents, servants and/or employees operated, maintained and controlled the New York City Department of Homeless Services, including all the special officers/peace officers thereof.

4. That at all times hereinafter mentioned Defendant CITY OF NEW YORK, its agents, servants and/or employees operated, maintained and controlled the New York City Police Department, including all the police officers thereof.

5. That at all times hereinafter mentioned, Defendant DHS PEACE OFFICER SMITH, BADGE NUMBER UNKNOWN, was employed by Defendant CITY OF NEW YORK as a peace officer/special officer.

6. That at all times hereinafter mentioned, Defendant DHS PEACE OFFICER SMITH, BADGE NUMBER UNKNOWN, acted within the scope of his employment for Defendant CITY OF NEW YORK.

7. That at all times hereinafter mentioned, Defendant DHS PEACE OFFICER SMITH, BADGE NUMBER UNKNOWN, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the City and State of New York, and under the authority of his office as a peace officer/special officer for said city and state.

8. That at all times hereinafter mentioned, Defendants DHS PEACE OFFICERS "JOHN DOE 1" TO "JOHN DOE 3", BADGE NUMBERS UNKNOWN, were employed by Defendant CITY OF NEW YORK as a peace officers/special officers.

9. That at all times hereinafter mentioned, Defendants DHS PEACE OFFICERS "JOHN DOE 1" TO "JOHN DOE 3", BADGE NUMBERS UNKNOWN, acted within the scope of their employment for Defendant CITY OF NEW YORK.

10. That at all times hereinafter mentioned, Defendants DHS PEACE OFFICERS "JOHN DOE 1" TO "JOHN DOE 3", BADGE NUMBERS UNKNOWN, were acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the City and State of New York, and under the authority of their office as peace officers/special officers for said city and state.

11. That at all times hereinafter mentioned, Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT were employed by Defendant CITY OF NEW YORK as police officers.

12. That at all times hereinafter mentioned, Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT acted within the scope of their employment for Defendant CITY OF NEW YORK.

13. That at all times hereinafter mentioned, Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT were acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the City and State of New York, and under the authority of their office as police officers for said city and state.

14. That on October 19, 2015, at approximately 11:00 P.M., Plaintiff LUIS MANGUAL was lawfully inside the BRC - Jack Ryan Residence, a shelter located at 127 West 25th Street in the County, City and State of New York, when he was suddenly accosted by members of the New York City Department of Homeless Services Police including Defendants DHS PEACE OFFICER SMITH, BADGE NUMBER UNKNOWN, and DHS PEACE OFFICERS "JOHN DOE 1" TO "JOHN DOE 3", BADGE NUMBERS UNKNOWN.

15. That at the aforementioned time and place, Defendants DHS PEACE OFFICER SMITH, BADGE NUMBER UNKNOWN, and DHS PEACE OFFICERS "JOHN DOE 1" TO "JOHN DOE 3", BADGE NUMBERS UNKNOWN, without just cause or provocation, struck Plaintiff LUIS MANGUAL. As a result of this unprovoked assault, Plaintiff LUIS MANGUAL sustained serious physical injuries.

16. That, at the aforementioned time and place, Defendants DHS PEACE OFFICER SMITH, BADGE NUMBER UNKNOWN, DHS PEACE OFFICERS "JOHN DOE 1" TO "JOHN DOE 3", BADGE NUMBERS UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT handcuffed Plaintiff LUIS MANGUAL and placed him under arrest for Criminal Mischief despite Defendants' knowledge that they lacked reasonable grounds or probable cause to do so.

17. That Plaintiff LUIS MANGUAL was transported to the 13th Precinct (230 E 21st Street, New York, New York 10010) where his arrest was processed. Thereafter, Plaintiff LUIS MANGUAL was transported to Manhattan Central Booking (100 Centre Street, New York, New

York). After arriving at Central Booking, but prior to arraignment, Plaintiff LUIS MANGUAL was transported to Bellevue Hospital Center (462 1st Avenue, New York, New York 10016) for initial treatment of his injuries. After initial treatment for his injuries, Plaintiff LUIS MANGUAL was returned to Central Booking and was released after being issued a Desk Appearance Ticket.

18. That Defendants DHS PEACE OFFICER SMITH, BADGE NUMBER UNKNOWN, DHS PEACE OFFICERS “JOHN DOE 1” TO “JOHN DOE 3”, BADGE NUMBERS UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT initiated criminal proceedings against Plaintiff LUIS MANGUAL despite Defendants’ knowledge that they lacked probable cause to do so.

19. That Plaintiff LUIS MANGUAL was incarcerated by Defendant CITY OF NEW YORK, its agents, servants, and employees from October 19, 2016, until October 21, 2016, when he was released from custody.

20. That on November 21, 2017, all charges against Plaintiff LUIS MANGUAL were dismissed by Order of the Honorable J. Hanshaft (Criminal Court Docket No. 2016NY067789 - Criminal Court of the City of New York - New York County).

21. That on or about February 12, 2018, within 90 days of Plaintiff’s acquittal but more than 30 days prior to the commencement of this action, Plaintiff LUIS MANGUAL duly presented, served, and filed a Notice of Claim, in writing, upon the Comptroller of Defendant CITY OF NEW YORK, setting forth the name and post office address of claimant and claimant’s attorney; the nature of the claim, the time when, the place where, and the manner in which the claim arose.

22. That more than 30 days have elapsed since service of said Notice of Claim and payment or adjustment thereof has been neglected or refused on behalf of Defendants CITY OF NEW YORK, DHS PEACE OFFICER SMITH, BADGE NUMBER UNKNOWN, DHS PEACE OFFICERS “JOHN DOE 1” TO “JOHN DOE 3”, BADGE NUMBERS UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT.

23. A municipal hearing regarding the above claim was held on May 1, 2018.

24. This action is commenced within one year and ninety days after the alleged state law cause(s) of action arose.

25. As a result of the foregoing, Plaintiff LUIS MANGUAL sustained, *inter alia*, physical injuries, emotional distress, embarrassment, humiliation, and deprivation of his constitutional rights.

AS AND FOR A FIRST CAUSE OF ACTION FOR EXCESSIVE FORCE
UNDER 42 U.S.C. § 1983

26. Plaintiff LUIS MANGUAL repeats, reiterates and realleges each and every paragraph of this complaint and further alleges:

27. The level of force employed by Defendants DHS PEACE OFFICER SMITH, BADGE NUMBER UNKNOWN, DHS PEACE OFFICERS “JOHN DOE 1” TO “JOHN DOE 3”, BADGE NUMBERS UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT was objectively unreasonable and in violation of Plaintiff LUIS MANGUAL’s constitutional rights.

28. As a result of the aforementioned conduct of Defendants DHS PEACE OFFICER SMITH, BADGE NUMBER UNKNOWN, DHS PEACE OFFICERS “JOHN DOE 1” TO “JOHN DOE 3”, BADGE NUMBERS UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT, Plaintiff LUIS MANGUAL was subjected to excessive force and sustained physical injuries.

AS AND FOR A SECOND CAUSE OF ACTION FOR FALSE ARREST
UNDER 42 U.S.C. § 1983

29. Plaintiff LUIS MANGUAL repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

30. That at the aforementioned time and place, Defendants DHS PEACE OFFICER SMITH, BADGE NUMBER UNKNOWN, DHS PEACE OFFICERS “JOHN DOE 1” TO “JOHN DOE 3”, BADGE NUMBERS UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT placed Plaintiff LUIS MANGUAL under

arrest despite Defendants' knowledge that they lacked probable cause to do so.

31. That Plaintiff LUIS MANGUAL had not committed any offense and Defendants DHS PEACE OFFICER SMITH, BADGE NUMBER UNKNOWN, DHS PEACE OFFICERS "JOHN DOE 1" TO "JOHN DOE 3", BADGE NUMBERS UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT did not have reasonable grounds or probable cause to believe that Plaintiff had committed any offense.

32. That Defendants DHS PEACE OFFICER SMITH, BADGE NUMBER UNKNOWN, DHS PEACE OFFICERS "JOHN DOE 1" TO "JOHN DOE 3", BADGE NUMBERS UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT were aware that probable cause did not exist for the arrest and detention of Plaintiff LUIS MANGUAL and that said arrest and detention was illegal, without justification or excuse, and without authority of law, and the Defendants acted with malicious intent to arrest, oppress, and injure Plaintiff LUIS MANGUAL and such actions were committed in bad faith.

33. That, in all of the wrongful acts above alleged, Defendants DHS PEACE OFFICER SMITH, BADGE NUMBER UNKNOWN, DHS PEACE OFFICERS "JOHN DOE 1" TO "JOHN DOE 3", BADGE NUMBERS UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT acted without reasonable or probable cause and with malicious intent to arrest, oppress, and injure Plaintiff LUIS MANGUAL and such actions were committed in bad faith.

34. As a direct and proximate result of the above-described unlawful and malicious acts of Defendants DHS PEACE OFFICER SMITH, BADGE NUMBER UNKNOWN, DHS PEACE OFFICERS "JOHN DOE 1" TO "JOHN DOE 3", BADGE NUMBERS UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT, all committed under color of their authority as peace officers/police officers, and while acting in that capacity, Plaintiff LUIS MANGUAL was deprived of the rights and immunities secured to him under the Constitutions and laws of the United States and of the State of New York, in particular the First, Fourth, Fifth, Eighth and Fourteenth Amendments thereof, and 42 U.S.C. §§ 1981,

1983, and 1985 (2) and (3), his liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

35. As a further result of the above-described acts, Plaintiff LUIS MANGUAL was deprived of the rights and immunities secured to him under the Constitution and laws of the United States and of the State of New York.

**AS AND FOR A THIRD CAUSE OF ACTION FOR FALSE IMPRISONMENT
UNDER 42 U.S.C. § 1983**

36. Plaintiff LUIS MANGUAL repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

37. That Plaintiff LUIS MANGUAL was falsely imprisoned from October 19, 2016, to October 21, 2016, by Defendant CITY OF NEW YORK, its agents, servants, and employees, including but not limited to Defendants DHS PEACE OFFICER SMITH, BADGE NUMBER UNKNOWN, DHS PEACE OFFICERS “JOHN DOE 1” TO “JOHN DOE 3”, BADGE NUMBERS UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT who procured and/or effected said false imprisonment knowing their actions to be wrongful and malicious and without any basis.

38. That Defendant CITY OF NEW YORK by and through its agents, servants, and employees, including but not limited to, Defendants DHS PEACE OFFICER SMITH, BADGE NUMBER UNKNOWN, DHS PEACE OFFICERS “JOHN DOE 1” TO “JOHN DOE 3”, BADGE NUMBERS UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT intended to confine Plaintiff LUIS MANGUAL, and Plaintiff LUIS MANGUAL was conscious of the confinement, and Plaintiff LUIS MANGUAL did not consent to the confinement.

39. That Defendants’ words, actions, and the charges laid by them were willful, malicious, false, wrongful, without reason or basis and without probable cause and committed in bad faith and solely for the purpose of falsely imprisoning Plaintiff LUIS MANGUAL and damaging Plaintiff LUIS MANGUAL in his reputation and depriving him of his liberty.

40. That as a direct and proximate result of the above-described unlawful and malicious acts of Defendants DHS PEACE OFFICER SMITH, BADGE NUMBER UNKNOWN, DHS PEACE OFFICERS "JOHN DOE 1" TO "JOHN DOE 3", BADGE NUMBERS UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT, all committed under color of their authority as peace officers/police officers for Defendant CITY OF NEW YORK, and while acting in that capacity, Plaintiff LUIS MANGUAL suffered damage, all of which is in violation of his rights under the Constitution and laws of the United States and of the State of New York.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR MALICIOUS PROSECUTION
UNDER 42 U.S.C. § 1983**

41. Plaintiff LUIS MANGUAL repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

42. That Defendants DHS PEACE OFFICER SMITH, BADGE NUMBER UNKNOWN, DHS PEACE OFFICERS "JOHN DOE 1" TO "JOHN DOE 3", BADGE NUMBERS UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT misrepresented and falsified evidence before the District Attorney.

43. That Defendants DHS PEACE OFFICER SMITH, BADGE NUMBER UNKNOWN, DHS PEACE OFFICERS "JOHN DOE 1" TO "JOHN DOE 3", BADGE NUMBERS UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT did not make a complete and full statement of facts to the District Attorney.

44. That Defendants DHS PEACE OFFICER SMITH, BADGE NUMBER UNKNOWN, DHS PEACE OFFICERS "JOHN DOE 1" TO "JOHN DOE 3", BADGE NUMBERS UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT withheld exculpatory evidence from the District Attorney.

45. That Defendants DHS PEACE OFFICER SMITH, BADGE NUMBER UNKNOWN, DHS PEACE OFFICERS "JOHN DOE 1" TO "JOHN DOE 3", BADGE NUMBERS UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH

PRECINCT were directly and actively involved in the initiation of criminal proceedings against Plaintiff LUIS MANGUAL.

46. That Defendants DHS PEACE OFFICER SMITH, BADGE NUMBER UNKNOWN, DHS PEACE OFFICERS "JOHN DOE 1" TO "JOHN DOE 3", BADGE NUMBERS UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT lacked probable cause to initiate criminal proceedings against Plaintiff LUIS MANGUAL.

47. That Defendants DHS PEACE OFFICER SMITH, BADGE NUMBER UNKNOWN, DHS PEACE OFFICERS "JOHN DOE 1" TO "JOHN DOE 3", BADGE NUMBERS UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT acted with malice in initiating criminal proceedings against Plaintiff LUIS MANGUAL.

48. That Defendants DHS PEACE OFFICER SMITH, BADGE NUMBER UNKNOWN, DHS PEACE OFFICERS "JOHN DOE 1" TO "JOHN DOE 3", BADGE NUMBERS UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT were directly and actively involved in the continuation of criminal proceedings against Plaintiff LUIS MANGUAL.

49. That Defendants DHS PEACE OFFICER SMITH, BADGE NUMBER UNKNOWN, DHS PEACE OFFICERS "JOHN DOE 1" TO "JOHN DOE 3", BADGE NUMBERS UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT lacked probable cause to continue criminal proceedings against Plaintiff LUIS MANGUAL.

50. That Defendants DHS PEACE OFFICER SMITH, BADGE NUMBER UNKNOWN, DHS PEACE OFFICERS "JOHN DOE 1" TO "JOHN DOE 3", BADGE NUMBERS UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT acted with malice in continuing criminal proceedings Plaintiff LUIS MANGUAL.

51. That Defendants DHS PEACE OFFICER SMITH, BADGE NUMBER UNKNOWN, DHS PEACE OFFICERS “JOHN DOE 1” TO “JOHN DOE 3”, BADGE NUMBERS UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT misrepresented and falsified evidence throughout all phases of the criminal proceeding.

52. That, notwithstanding the perjurious and fraudulent conduct of Defendants DHS PEACE OFFICER SMITH, BADGE NUMBER UNKNOWN, DHS PEACE OFFICERS “JOHN DOE 1” TO “JOHN DOE 3”, BADGE NUMBERS UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT the criminal proceedings were terminated in Plaintiff LUIS MANGUAL’ favor.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR MALICIOUS PROSECUTION
UNDER NEW YORK STATE LAW**

53. Plaintiff LUIS MANGUAL repeats, reiterates and realleges each and every paragraph of this complaint and further alleges:

54. On or about October 19, 2016, Defendant CITY OF NEW YORK, its agents, servants, and employees, including Defendants DHS PEACE OFFICER SMITH, BADGE NUMBER UNKNOWN, DHS PEACE OFFICERS “JOHN DOE 1” TO “JOHN DOE 3”, BADGE NUMBERS UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT commenced a criminal proceeding against Plaintiff LUIS MANGUAL, and falsely and maliciously, and without probable cause, charged Plaintiff with crimes.

55. Defendants DHS PEACE OFFICER SMITH, BADGE NUMBER UNKNOWN, DHS PEACE OFFICERS “JOHN DOE 1” TO “JOHN DOE 3”, BADGE NUMBERS UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT, with the consent and participation of one another, continued said proceeding despite the fact that they knew or should have known that Plaintiff LUIS MANGUAL had not committed any crimes, that there were no exigent circumstances justifying a warrantless arrest, and that there was no need for the arrest and imprisonment of Plaintiff.

56. Defendants DHS PEACE OFFICER SMITH, BADGE NUMBER UNKNOWN, DHS PEACE OFFICERS “JOHN DOE 1” TO “JOHN DOE 3”, BADGE NUMBERS UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT were directly and actively involved in the initiation of criminal proceedings against Plaintiff LUIS MANGUAL.

57. Defendants DHS PEACE OFFICER SMITH, BADGE NUMBER UNKNOWN, DHS PEACE OFFICERS “JOHN DOE 1” TO “JOHN DOE 3”, BADGE NUMBERS UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT, lacked probable cause to initiate criminal proceedings against Plaintiff LUIS MANGUAL.

58. Defendants DHS PEACE OFFICER SMITH, BADGE NUMBER UNKNOWN, DHS PEACE OFFICERS “JOHN DOE 1” TO “JOHN DOE 3”, BADGE NUMBERS UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT were motivated by actual malice in initiating criminal proceedings against Plaintiff LUIS MANGUAL.

59. Defendants DHS PEACE OFFICER SMITH, BADGE NUMBER UNKNOWN, DHS PEACE OFFICERS “JOHN DOE 1” TO “JOHN DOE 3”, BADGE NUMBERS UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT misrepresented and falsified evidence before the District Attorney.

60. Defendants DHS PEACE OFFICER SMITH, BADGE NUMBER UNKNOWN, DHS PEACE OFFICERS “JOHN DOE 1” TO “JOHN DOE 3”, BADGE NUMBERS UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT did not make a complete and full statement of facts to the District Attorney.

61. Defendants DHS PEACE OFFICER SMITH, BADGE NUMBER UNKNOWN, DHS PEACE OFFICERS “JOHN DOE 1” TO “JOHN DOE 3”, BADGE NUMBERS UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT withheld exculpatory evidence from the District Attorney.

62. Defendants DHS PEACE OFFICER SMITH, BADGE NUMBER UNKNOWN, DHS PEACE OFFICERS “JOHN DOE 1” TO “JOHN DOE 3”, BADGE NUMBERS UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT were directly and actively involved in the continuation of criminal proceedings against Plaintiff LUIS MANGUAL.

63. Defendants DHS PEACE OFFICER SMITH, BADGE NUMBER UNKNOWN, DHS PEACE OFFICERS “JOHN DOE 1” TO “JOHN DOE 3”, BADGE NUMBERS UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT lacked probable cause to continue criminal proceedings against Plaintiff LUIS MANGUAL.

64. Defendants DHS PEACE OFFICER SMITH, BADGE NUMBER UNKNOWN, DHS PEACE OFFICERS “JOHN DOE 1” TO “JOHN DOE 3”, BADGE NUMBERS UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT were motivated by actual malice in continuing criminal proceedings against Plaintiff LUIS MANGUAL.

65. That, notwithstanding the perjurious and fraudulent conduct of Defendants DHS PEACE OFFICER SMITH, BADGE NUMBER UNKNOWN, DHS PEACE OFFICERS “JOHN DOE 1” TO “JOHN DOE 3”, BADGE NUMBERS UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT the criminal proceedings were terminated in Plaintiff LUIS MANGUAL’s favor.

AS AND FOR A SIXTH CAUSE OF ACTION FOR MUNICIPAL LIABILITY
UNDER 42 U.S.C. § 1983

66. Plaintiff LUIS MANGUAL repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

67. That Defendants DHS PEACE OFFICER SMITH, BADGE NUMBER UNKNOWN, DHS PEACE OFFICERS “JOHN DOE 1” TO “JOHN DOE 3”, BADGE NUMBERS UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT while acting under color of state law, engaged in conduct that constituted a custom,

usage, practice, procedure or rule of the respective municipality/ authority, which is forbidden by the Constitution of the United States.

68. That the aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department included, but were not limited to, wrongfully detaining minority males based on racial profiling and making unlawful arrests in order to satisfy an arrest quota.

69. That the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well- being and constitutional rights of Plaintiff LUIS MANGUAL.

70. That the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by Plaintiff LUIS MANGUAL as alleged herein.

71. That the foregoing customs, policies, usages, practices, procedures and rules of the City of New York, New York City Department of Homeless Services, and New York City Police Department were the moving force behind the constitutional violations suffered by Plaintiff LUIS MANGUAL as alleged herein.

72. That Defendants DHS PEACE OFFICER SMITH, BADGE NUMBER UNKNOWN, DHS PEACE OFFICERS “JOHN DOE 1” TO “JOHN DOE 3”, BADGE NUMBERS UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT while acting under the color of state law, were directly and actively involved in violating Plaintiff LUIS MANGUAL’s constitutional rights.

73. That all of the foregoing acts by Defendant CITY OF NEW YORK, its agents, servants and/or employees including Defendants DHS PEACE OFFICER SMITH, BADGE NUMBER UNKNOWN, DHS PEACE OFFICERS “JOHN DOE 1” TO “JOHN DOE 3”, BADGE NUMBERS UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT deprived Plaintiff LUIS MANGUAL of federally protected rights including, but not limited to, the right:

- A. Not to be deprived of liberty without due process;
- B. To be free from seizure and arrest not based on probable cause;
- C. To be free from excessive force;
- D. To be free from unwarranted and malicious criminal prosecution;
- E. To be free from malicious abuse of process;
- F. Not to have cruel and unusual punishment imposed upon him;
- G. To receive equal protection under the law.

AS AND FOR A SEVENTH CAUSE OF ACTION FOR FAILURE TO INTERVENE

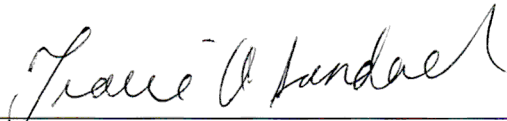
74. Plaintiff LUIS MANGUAL repeats, reiterates and realleges each and every allegation contained in this complaint and further alleges:

75. That each and every individual Defendant had an affirmative duty to intervene on Plaintiff LUIS MANGUAL's behalf to prevent the violation of his constitutional rights and failed to so intervene despite having had a realistic opportunity to do so.

76. As a result of the aforementioned conduct of Defendants DHS PEACE OFFICER SMITH, BADGE NUMBER UNKNOWN, DHS PEACE OFFICERS "JOHN DOE 1" TO "JOHN DOE 3", BADGE NUMBERS UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT, Plaintiff LUIS MANGUAL's constitutional rights were violated and he was subjected to cruel and unusual punishment and sustained physical injuries.

WHEREFORE Plaintiff LUIS MANGUAL demands judgment against Defendants CITY OF NEW YORK, DHS PEACE OFFICER SMITH, BADGE NUMBER UNKNOWN, DHS PEACE OFFICERS “JOHN DOE 1” TO “JOHN DOE 3”, BADGE NUMBERS UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 13TH PRECINCT, jointly and severally, in the amount of One Million Dollars (\$1,000,000.00) in compensatory damages and Three Million Dollars (\$3,000,000.00) in punitive damages, plus reasonable attorney’s fees, costs and disbursements of this action.

Dated: White Plains, New York
January 14, 2019



TRACIE A. SUNDACK & ASSOCIATES, L.L.C.
Attorneys for Plaintiff
LUIS MANGUAL
19 Court Street, 3rd Floor
White Plains, New York 10601
(914) 946-8100

ATTORNEY'S VERIFICATION

STATE OF NEW YORK)
) SS.:
COUNTY OF WESTCHESTER)

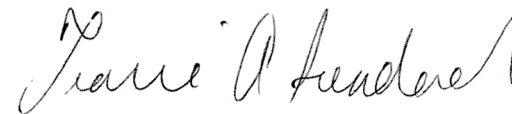
I, the undersigned, an attorney admitted to practice in the Courts of the State of New York, state:

That I am the attorney of record for the Plaintiff in the within action.

That I have read the foregoing SUMMONS and COMPLAINT and know the contents thereof; the same is true to my own knowledge, except for the matters therein alleged to be on information and belief, and as to those matters I believe them to be true. The reason this Verification is made by me and not by the Plaintiff is that the Plaintiff resides outside the County where your affirmant maintains her office. The grounds of my belief as to all matters not stated upon my own knowledge are as follows: files maintained by my office and conversations with the Plaintiff.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: White Plains, New York
January 14, 2019



TRACIE A. SUNDACK